Galveston County District Court

Cause No. 2024-CV-0021

Megan Gutierrez, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	October 24, 2024
Plaintiff's counsel:	Laura Bryant, Dunn & Acosta LLP

PARTIES

Plaintiff Megan Gutierrez is an individual residing in Texas who was operating a passenger vehicle at the time of the collision described below. Defednant is an automobile insurance carrier authorized to transact business in the State of Texas, which issued the policy under which Plaintiff seeks benefits and against which this action is brought.

FACTS

On October 18, 2023, Plaintiff was driving through a signalized intersection in Sugar Land when another vehicle entered the intersection from a cross street and struck the side of Plaintiff's vehicle. The impact pushed Plaintiff's car sideways and caused substantial damage to the driver's side. Plaintiff reported the collision promptly and submitted documentation of the loss to Defendant. Defendant has not paid the claim in an amount sufficient to cover Plaintiff's medical treatment and property damage, and has delayed its evaluation without adequate explanation.

NEGLIGENCE

Defendant, as the insurer obligated to pay covered benefits under the policy, owed Plaintiff a duty to investigate the claim in good faith, to evaluate it fairly, and to pay amounts owed once liability became reasonably clear. Defendant breached that duty by failing to conduct a reasonable investigation, by unreasonably delaying payment, and by offering a settlement that did not reflect the nature and extent of Plaintiff's injuries. These failures violate the duties imposed under Chapter 541 and Chapter 542 of the Texas Insurance Code.

DAMAGES

As a direct result of the collision and Defendant's conduct, Plaintiff sustained a shoulder injury requiring medical evaluation, imaging, and ongoing treatment, and has experienced pain, limited range of motion, and lost time from daily activities. Plaintiff has also incurred medical expenses and loss of use of the vehicle. Plaintiff seeks recovery of policy benefits, statutory interest, attorney's fees, and additional damages as permitted by law, in an amount of $176,000.00.